

Complaint regarding the publication of personal data

Following the instructions of the Commissioner for the Protection of Personal Data, I refer to the complaint submitted to our Office by XXXX (hereinafter, "the complainant") against XXXX and XXXX (hereinafter, "the respondents").

1. Claims of the parties

1.1 Claims of the complainant

1.1.1 The complaint relates to the publication of details of the minor XXXX (hereinafter, "the minor") by the respondents on a Social Media Platform (Facebook).

1.1.2 The posts shared by the complainant with our Office include photographs as well as details posted on the Social Media Platform that lead to the identification of the minor.

1.1.3 According to the complainant's assertion, she has exclusive parental responsibility for the minor and it is her wish that no details about him are exposed via Facebook by any person.

1.2 Claims of the respondents

1.2.1 During the investigation of the complaint, our Office communicated in writing with the respondents. The respondents stated that no photograph of the minor has been publicly shared on a Social Media Platform. However, the name XXXX is mentioned in a post made on the day of the minor's celebration and the first day of the school year.

1.2.2 The respondents confirm that the complainant has exclusive parental responsibility for the minor. They also mentioned that a request is pending before the Family Court of Nicosia for exclusive parental responsibility.

1.2.3 As they have stated to our Office, the respondents have ensured that the posts leading to details identifying the minor have been removed. Additionally, as XXXX has informed us, he has drawn XXXX's attention to be more careful with her posts in the future.

2. Conclusion

2.1 Based on what has been presented to our Office, the Commissioner finds that the posting of a photograph and details identifying the minor, without the consent of the complainant, who has exclusive parental responsibility for the minor, constitutes a violation of his personal data.

2.2 Taking into account the following mitigating (a-d) and aggravating (e) factors:

- a. the immediate corrective actions taken by the respondents after the relevant indication from our Office,
- b. the apology of the respondents,
- c. the assurance that such an incident will not be repeated in the future,
- d. the fact that a request is pending in Court for a change of circumstances,
- e. the publication of details of the minor on a social networking platform by the respondents

and in accordance with the powers granted to the Commissioner for the Protection of Personal Data under Article 58 of the General Data Protection Regulation (EU) 2016/679 (GDPR), among others, "a) to issue warnings to the controller or the processor that intended processing operations are likely to infringe provisions of this Regulation," the Commissioner issues a Warning to XXXX, to ensure in the future that they do not publish details of the minor without a legal basis.

2.3 Furthermore, due to the fact that an administrative fine has already been imposed on XXXX and considering the existing circumstances, our Office finds that the imposition of an administrative fine at this time is not an appropriate measure. Additionally, the imposition of an administrative fine may impact XXXX's ability to fulfill his financial obligations towards the minor.

2.4 Our Office understands that this case is distressing for all involved, primarily for the psychological

well-being of the minor, and it must be understood by all parties that his best interests and mental health are also our concern.

For the Commissioner for the Protection of Personal Data